Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers of the Town Hall on Monday, May 27, 2019 at 1:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 1:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3 Departmental Reports

3.1 Bill 108: More Homes, More Choice Act, 2019 – Town of Ajax Comments

Members of staff from the Town's Planning & Development Services and Finance Departments provided a presentation reviewing the contents of their written report and the recommendations contained therein.

Sean McCullough, Senior Planner, reviewed the background of Bill 108, and noted staff's review focused on the *Planning Act, Development Charges Act, Ontario Heritage Act,* and *Local Planning Appeal Tribunal Act*. S. McCullough discussed the proposed changes to the *Planning Act*, compared current planning tools against those proposed in Bill 108, reviewed changes to parkland compensation calculations for municipalities and the introduction of the Community Benefit Charge.

Julie Mepham, Senior Financial Analyst, reviewed the proposed changes to the *Development Charges Act*, including removal of eligibility for soft services, timing of calculation and payments, and exemptions for secondary units.

Michael Sawchuck, Senior Planner, reviewed the proposed changes to the *Ontario Heritage Act*, including new regulatory powers, notification and objection standards, timelines for property designation, appeal processes, and definitions.

S. McCullough reviewed the proposed changes to the *Local Planning Appeal Tribunal Act*, including the reversal of changes made through Bill 139, removal of the two stage appeal process, return to "de novo" hearings, expansion of grounds for appeals, ability to introduce new evidence, directed mediation, and establishment of fee classifications. S. McCullough concluded the presentation by reviewing key messages on the legislative changes proposed by Bill 108.

Council members asked questions regarding staff comments on proposed changes to the *Endangered Species Act*, impacts on the Town's development application processes, experience with the new Local Planning Appeal Tribunal, and budgetary impacts of the proposed changes. Stev Andis, Supervisor of Planning Policy & Research, discussed the comment deadline imposed by the province. S. McCullough discussed impacts on the Town's development application process and reviewed the new LPAT appeal process currently in effect. Shane Baker, Chief Administrative Officer, and J. Mepham discussed budgetary impacts to the Town and reduced funding from development charges.

Council members further discussed the legislative changes proposed in Bill 108, financial

and planning-related impacts on municipalities, staff's recommended comments to the province, and the proposed changes to the *Endangered Species Act*.

Main Motion

1. That the Report entitled "Bill 108: More Homes, More Choices Act, 2019 – Town of Ajax Comments" be received for information.

2. That staff's comments included as Attachment 1 to this Report be endorsed and submitted to the Ministry of Municipal Affairs and Housing, Ministry of Tourism, Culture and Sport, and the Ministry of the Attorney General as the Town's comments in response Bill 108: More Homes, More Choices Act, 2019, or more specifically:

   - ERO No. 019-0016: Schedule 12 - Proposed Amendments to the Planning Act;
   - ERO No. 019-0017: Schedule 3 - Proposed Amendments to the Development Charges Act, 1997;
   - ERO No. 019-0021: Schedule 11 – Proposed Amendments to the Ontario Heritage Act; and
   - Proposed Amendments to the Local Planning Appeals Tribunal Act, 2017.

3. That this Report, Attachment 1, and a copy of Council's resolution be forwarded to the Ministry of Municipal Affairs and Housing, the Ministry of Tourism, Culture and Sport; and the Ministry of the Attorney General in advance of the June 1, 2019 comment deadline.

4. That a copy of this report be distributed to the Region of Durham, all local Durham Region municipalities, the Toronto and Region Conservation Authority, and the Central Lake Ontario Conservation Authority.

Amendment

Moved by: S. Lee
Seconded by: J. Dies

That the Town's comments be amended to reflect that the Town recommends that no changes be made to the *Endangered Species Act* (schedule 5) as it pertains to Bill 108.

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin
Seconded by: L. Bower

1. That the Report entitled "Bill 108: More Homes, More Choices Act, 2019 – Town of Ajax Comments" be received for information.

2. That staff's comments, included as Attachment 1 to this Report as amended, be endorsed and submitted to the Ministry of Municipal Affairs and Housing, Ministry of Tourism, Culture and Sport, and the Ministry of the Attorney General as the Town's comments in response Bill 108: More Homes, More Choices Act, 2019, or more specifically:

   - ERO No. 019-0016: Schedule 12 - Proposed Amendments to the Planning Act;
   - ERO No. 019-0017: Schedule 3 - Proposed Amendments to the Development Charges Act, 1997;
   - ERO No. 019-0021: Schedule 11 – Proposed Amendments to the Ontario Heritage Act; and
   - Proposed Amendments to the Local Planning Appeals Tribunal Act, 2017.

3. That this Report, Attachment 1 as amended, and a copy of Council's resolution be forwarded to the Ministry of Municipal Affairs and Housing, the Ministry of Tourism, Culture and Sport; and the Ministry of the Attorney General in advance of the June 1, 2019 comment deadline.

4. That a copy of this report be distributed to the Region of Durham, all local Durham Region municipalities, the Toronto and Region Conservation Authority, and the Central Lake Ontario Conservation Authority.

CARRIED

4. Confirming By-Law

Moved by: A. Khan
Seconded by: J. Dies

That By-law number 35-2019 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on May 27, 2019 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: L. Bower
Seconded by: A. Khan

That the May 27, 2019 special meeting of the Council of the Town of Ajax be adjourned. (1:41 p.m.)

CARRIED

Mayor

Acting Clerk